

Dr. Asoke Kumar Chaudhuri & Ors vs Dr. Kunal Saha on 1 July, 2013

Author: Aniruddha Bose

Bench: Aniruddha Bose

Form No. J(2)

IN THE HIGH COURT AT CALCUTTA
CIVIL APPELLATE JURISDICTION
APPELLATE SIDE

Present:

The Hon'ble Justice Aniruddha Bose

C.R.R. No. 4243 of 2011

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C.R.A.N. 2636 of 2012

Dr. Asoke Kumar Chaudhuri & Ors.

Vs.

Dr. Kunal Saha

Advocates for the petitioner: Mr. Bikash Ranjan Bhattacharya
Mr. Tirthankar Ghosh
Ms. Rupa Bandyopadhyay

Respondent: Dr. Kunal Saha (in person)

Judgment On: 1st July, 2013.

ANIRUDDHA BOSE, J.: -

1. The petitioners before me are sixteen medical practitioners, who at the material point of time were members of the West Bengal Medical Council (Council) constituted under the Bengal Medical Act, 1914. They have been arraigned as accused in a complaint relating to allegations of offence under Sections 201/120B of the Indian Penal Code by the opposite party, who is the complainant before the Court of the learned 8th Metropolitan Magistrate Kolkata. The said case has been registered as C/20678/11. The learned Magistrate on 19th August, 2011, upon examining the

complainant found sufficient reason to raise strong and reasonable complicity against the accused persons in relation to the said alleged offences and issued process against them directing them to appear before the Court. In this revisional petition, prayer is made for quashing the said proceeding. The complaint of the petitioners before the learned Magistrate has its genesis in several actions brought by the complainant/opposite party, Dr. Kunal Saha, alleging negligence on the part of certain medical practitioners who had treated his wife Anuradha, in the year 1998. Anurudha passed away eventually in the same year.

2. As it appears from the petition of complaint, a copy of which has been annexed to a supplementary affidavit filed by the petitioners in relation to the present application, Dr. Saha had lodged a written complaint with the Council in the year 1999. In the complaint, he alleged negligence and maltreatment of his wife by three medical practitioners. The complaint was referred to the penal and ethical cases committee no. 1 to conduct enquiry into the allegations Dr. Saha. It appears that the said committee had chosen to obtain opinion of certain medical experts, and initially opinion was obtained from a dermatologist based in Kolkata, Professor Ranjit Kumar Panja. Contention of Dr. Saha is that Professor Panja found the treatment given by the three medical practitioners to Anurudha to be not proper. Opinion of two other experts in the field of medicine, Prof. (Dr.) Panchanan Moulik and Prof. (Dr.) Sujit Sengupta were also obtained and their opinions also appear to have supported the claim of Dr. Saha that the treatment provided by the medical practitioners against whom he complained was wrong. Opinion of a fourth expert, Prof. (Dr.) Santanu Kumar Triparti, a Professor of pharmacology also appears to have gone against the said doctors. All these background facts, however, have not been specifically pleaded in the Revisional Application or in the petition of complaint. These facts have been brought to my notice from a judgment of the Hon'ble Supreme Court in a case reported in [(2009)9 SCC 221], to which I shall refer to in the later part of this judgment, and also forms part of records of certain other proceedings pending before this Court to which reference has been made in course of hearing. I am reproducing these facts in this judgment, as in my opinion, for proper appreciation of the factual context in which this proceeding has been instituted, disclosure of broad outline of the background of this proceeding is necessary.

3. The Council had exonerated two of the three doctors at the initial stage, being Dr. Baidyanath Halder and Dr. Abani Roy Choudhury (since deceased). Against the third doctor, Sukumar Mukherjee charge was framed on 8th November, 2001, on the allegation of administering certain injection much above the recommended dose. Subsequently, Dr. Mukherjee was also exonerated by the Council by an order dated 18th June, 2002. Two parallel proceedings were instituted against the medical practitioners who treated Anurudha, one in the form of a criminal complaint, and the other in the National Consumer Disputes Redressal Commission (NCDRC), seeking compensation for deficiency in service. Before the NCDRC, Dr. Saha alleged deficiency in service against several medical practitioners including the three doctors against whom complaint was lodged before the Council. The hospital in which she was treated was also impleaded as respondents in that proceeding. The NCDRC had rejected the case of Dr. Saha, who appears before me in person in this proceeding. He submitted that one of the grounds for rejection of his complaint before the NCDRC was finding of the Council in respect of the three medical practitioners, who were exonerated of the charges brought against them.

4. As regards the criminal complaint instituted before the learned Chief Judicial Magistrate at Alipore lodged by a relative of Dr. Saha, by a judgment and order dated 29th May, 2001 the Court had found the two doctors guilty of criminal negligence and they were convicted under the provisions of Section 304A of the Indian Penal Code, sentenced to undergo simple imprisonment for three months and pay a fine of Rs. 3000/- each, in default of which they were further directed to undergo simple imprisonment for fifteen days. Dr. Abani Roy Choudhury, since deceased, was acquitted. The two doctors who were convicted, being Dr. Sukumar Mukherjee and Dr. Baidyanath Halder preferred appeals against the judgment and order of their conviction before the learned Sessions Judge, Alipore. The complainant filed a revision application against the judgment of acquittal of Dr. Abani Roy Choudhury (since deceased) before this Court. The appeals filed by the two doctors were withdrawn by the Hon'ble single Judge of this Court before whom the application of the complainant was heard. An Hon'ble Single Judge of this Court by a judgment delivered on 19th March, 2004 allowed the appeals against conviction and dismissed the application against the order of acquittal. Appeal was preferred against the judgment of this Court as well as the judgment of the NCDRC before the Hon'ble Supreme Court. In the case of Molay Kumar Ganguly Vs. Sukumar Mukherjee, reported in [(2009)9 SCC 221], the judgment of this Court in the criminal appeals and revision application was sustained. On the issue of deficiency in service, the Supreme Court found that the judgment of the NCDRC was wrong so far the said forum had opined that there was no negligence on the part of the hospitals or doctors and the case was remitted to the NCDRC for the purpose of determination of the quantum of compensation. Subsequently, Dr. Saha has also filed an appeal before the Medical Council of India against the order of the Council exonerating the doctors, and the MCI had directed the Council to cancel the registration of the two doctors, Dr. Sukumar Mukherjee and Dr. Abani Roy Chowdhury for a specified period of time. Two writ petitions have been filed by the said two doctors challenging the order of the Medical Council of India. In the said two writ petitions, interim orders have been granted staying the operation of the order of the MCI. These two writ petitions are pending for final adjudication before this Court.

5. The main allegation in the petition of complaint, against the accused persons is that they had entered into a criminal conspiracy amongst themselves and deliberately concealed and withheld evidence and information relating to commission of offence of medical negligence and sought to screen the offenders, being the said doctors. The substance of the allegations of Dr. Saha is contained in paragraph 23 of the petition of complaint, which reads:-

"That on the backdrop of what has been canvassed in the foregoing paragraphs, it is most palpable and glaring that the accused persons had entered into a deep-rooted criminal conspiracy amongst themselves to screen the offenders and in pursuance to that, as overt acts, the accused persons knowing fully well that the offending doctors had committed the offence of medical negligence and thereby caused death of the wife of the petitioners, deliberately concealed and withheld the evidences and/or information relating to the said offenders with the intention to save their skin and thereby committed the offence punishable under Section 201 of the Indian Penal Code read with Section 120B of the said Code."

6. Before the learned Trial Court, main case of Dr. Saha is that the members of the Council had concealed the opinion of the four experts which they themselves had obtained, and passed the order exonerating the three doctors without looking at such vital documents. This appears from the initial deposition of Dr. Saha, which has also been annexed to the supplementary affidavit, in which he has stated:-

"All the four experts opined that there was negligence in treatment by Dr. Sukumar Mukherjee and Dr. Baidyanath Halder.

The Medical Council members never looked into the report of four experts nor referred those report to Court in order to exonerate Dr. Sukumar Mukherjee.

The Medical Council members said there is no negligence on the part of Dr. S. Mukherjee.

I preferred Appeal before Medical Council of India, the highest regulatory body of Medicine.

The members of MCI held that Dr. Sukumar Mukherjee is guilty of medical negligence.

I never get any information from the members of Medical Council of WB.

In the month of July 2011 I got certified copy of opinion of the experts and I found that the members of Medical Council of WB deliberately withheld the opinion of the expert doctors.

I pray for process and I filed all documents."

7. Appearing for the petitioners, the first point urged by Mr. Bikash Ranjan Bhattacharya, learned senior counsel is that the petition of complaint does not disclose commission of any offence and on that ground itself the petition of complaint ought to be quashed. He has also argued that the learned Magistrate ought not to have issued process without prior sanction in terms of Section 197 of the Code of Criminal Procedure, 1973. His submission on this point is that the petitioners come within the ambit of the expression "Judge" as defined in Section 19 of the Indian Penal Code and hence prior sanction from the appropriate authority under the provisions of Section 197 of the 1973 Code ought to have been taken in the instant case before the learned Magistrate proceeded with the matter. He has also argued that the order passed by the Council was in discharge of their statutory duty, and any act done in discharge of such duty has immunity from prosecution in terms of Section 27 of the Bengal Medical Council Act, 1914. The said provision stipulates:-

"Bar to suits and other legal proceedings.-No suit or other legal proceeding shall lie in respect of any act done in the exercise of any power conferred by this act on the [State Government] or the Council [or any Committee of the Council] or the Registrar."

8. He drew my attention to the expression "Judge" as contained in Section 19 of the Indian Penal Code 1860:-

"Judge".- "The word "Judge" denotes not only every person who is officially designated as a Judge, but also every person, - who is empowered by law to give, in any legal proceeding, civil or criminal, a definitive judgment, or a judgment which, if not appealed against, would be definitive, or a judgment which, if confirmed by some other authority, would be definitive, or who is one of a body of persons, which body of persons is empowered by law to give such a judgment.

(a) A Collector exercising jurisdiction in a suit under Act 10 of 1859, is a Judge.

(b) A Magistrate exercising jurisdiction in respect of a charge on which he has power to sentence to fine or imprisonment, with or without appeal, is a Judge.

(c) A member of a panchayat which has power, under Regulation VII, 1816, of the Madras Code, to try and determine suits, is a Judge.

(d) A Magistrate exercising jurisdiction in respect of a charge on which he has power only to commit for trial to another Court, is not a Judge."

9. So far as the question of prosecution of Judges and public servants are concerned, it is permissible for the Court to ascertain as to whether the act which is alleged to have been committed as offence is in discharge of official duty or not. The Trial Court is not required to mechanically wait for sanction before taking cognizance, if a prima facie case is made out that the offence alleged is of such nature that it could not be said to have been committed in the discharge of official duty. On the question as to whether the petitioners come within the ambit of the expression "Judge" or not, no argument in detail has been advanced before me, and as such I am not giving my finding on that issue. But assuming the petitioners come within that definition, or are held to be public servants, then also it would have been permissible on the part of the Trial Court to ascertain as to whether the acts complained against were committed in exercise or discharge of official duty or not, before stalling the proceeding on the ground of lack of consent. The present view of the Supreme Court in such a situation is not to scuttle at the threshold complaint against the categories of persons specified in Section 197(1) of the 1973 Code for lack of sanction, as it is inconceivable that an offence could be committed in discharge of official duty. In the case of Raj Kishor Roy Vs. Kamleshwar Pandey [(2002)6 SCC 543] it has been held:-

"11. In this case, as indicated above, the complaint was that the 1st respondent had falsely implicated the appellant and his brother in order to teach them a lesson for not paying anything to him. The complaint was that the 1st respondent had brought an illegal weapon and cartridges and falsely shown them to have been recovered from the appellant and his brother. The High Court was not right in saying that even if these facts are true then also the case would come within the purview of Section 197 CrPC. The question whether these acts were committed and/or whether the 1st

respondent acted in discharge of his duties could not have been decided in this summary fashion. This is the type of case where the prosecution must be given an opportunity to establish its case by evidence and an opportunity given to the defence to establish that he had been acting in the official course of his duty. The question whether the 1st respondent acted in the course of performance of duties and/or whether the defence is pretended or fanciful can only be examined during the course of trial. In our view, in this case the question of sanction should be left open to be decided in the main judgment which may be delivered upon conclusion of trial."

10. In a later judgment, Om kumar Dhankar Vs. State of Haryana reported in [(2012)11 SCC 252] it has been held:-

"11. The second question, is whether sanction under section 197, Cr.P.C. is mandatorily required for the prosecution of respondent No. 2 for the offences under Sections 420, 406 and 161, IPC as he happened to be Deputy Excise and Taxation Commissioner at the time of incident.

12.Mr. Anis Ahmed Khan, learned Counsel for the respondent No. 2, heavily relied upon the decision of this Court in Rakesh Kumar Mishra v. State of Bihar, (2006)1 SCC 557 while supporting the view of the High Court.

13. In our view, the controversy with regard to the second question is concluded by the decision of this Court in Prakash Singh Badal and Another v. State of Punjab and Others, (2007)1 SCC 1. Rakesh Kumar Mishra case (supra) was considered in Prakash Singh Badal case (supra) in para 49 of the report. This Court thus held that the offence of cheating under Section 420 or for that matter offences relateable to Sections 467, 468, 471 and 120-B can by no stretch of imagination by their very nature be regarded as having been committed by any public servant while acting or purporting to act in discharge of official duty.

14. This Court stated in paragraphs 49 and 50 of the report thus:

"49. Great emphasis has been laid on certain decisions of this Court to show that even in relation to the offences punishable under Sections 467 and 468 sanction is necessary. The foundation of the position has reference to some offences in Rakesh Kumar Mishra case. That decision has no relevance because ultimately this Court has held that the absence of search warrant was intricately (sic linked) with the making of search and the allegations about alleged offences had their matrix on the absence of search warrant and other circumstances had a determinative role in the issue. A decision is an authority for what it actually decides. Reference to a particular sentence in the context of the factual scenario cannot be read out of context.

50. The offence of cheating under Section 420 or for that matter offences relateable to Sections 467, 468, 471 and 120- B can by no stretch of imagination by their very nature be regarded as having been committed by any public servant while acting or purporting to act in discharge of official duty. In such cases, official status only

provides an opportunity for commission of the offence.

15. In view of the above legal position, the Additional Sessions Judge and the High Court were not right in holding that for prosecuting the respondent No. 2 for the offences for which the summoning order has been issued, the sanction of the competent authority under Section 197, CR.P.C. is required. The view of the Additional Sessions Judge and the High Court in Prakash Singh Badal case (supra). The second question is answered in the negative and in favour of the appellant."

11. Immunity granted to the members of the Council or the members of their committees from any suit or other legal proceeding would cover acts done in the exercise of power conferred by the 1914 Act. The same principle ought to apply while dealing with the question of immunity under the said provisions. In the event the complaint against the members of the Council is in relation to commission of offence which cannot be expected to be committed in discharge of official duty, then the Trial Court would be empowered to examine as to whether the alleged acts relate to discharge or exercise of power conferred by the Act or not. The petitioners would be at liberty to establish their case before the learned Magistrate that they had taken the steps in exercise of power conferred on them by the 1914 Act or in discharge of official duty in course of such proceeding.

12. Mr. Bhattacharya has also argued that the petition of complaint read on the whole does not disclose any offence, and it is mainly on this ground he has prayed for quashing the proceeding. He has referred to the judgment of the Hon'ble Supreme Court in the case of Budhan Singh Vs. State of Bihar [(2006)4 SCC 740] and submitted that in the petition of complaint, the ingredients of the offence under Section 201 of the IPC has not been disclosed. On this count, he has relied on paragraph 17 of the Report, in which the aforesaid provision has been analysed:-

"17. The ingredients of Section 201 of the Penal Code are as under:

- (1) that an offence has been committed;
- (2) that the accused knew or had reason to believe the commission of such offence;
- (3) that with such knowledge or belief he-
 - (a) caused any evidence of the commission of that offence to disappear, or
 - (b) gave any information respecting that offence which he then knew or believed to be false;
- (4) that he did as aforesaid, with the intention of screening the offender from legal punishment;
- (5) if the charge be of an aggravated form, as in the present case, it must be proved further that the offence in respect of which the accused did as in (3) and (4) was punishable with death, or with imprisonment for life or imprisonment extending to

ten years."

13. The other authorities relied on by Mr. Bhattacharya on this point are Wattan Singh Vs. State of Punjab [(2004)3 SCC 700], Arbind Singh Vs. State of Bihar (AIR 1994 SC 1068), Palvinder Kaur Vs. State of Punjab (AIR 1952 SC 354). These authorities were cited to establish that the accused persons ought to have had direct knowledge that offence was being committed to justify prosecution under Section 201 of the IPC. These three authorities, however, deal with interpretation of the said provision after conclusion of trial, and not at the threshold, as in this case.

14. Jurisdiction of the High Court under Section 482 of the Code to quash a proceeding is required to be sparingly used. The manner in which, and the circumstances under which such jurisdiction is to be exercised has been explained by the Hon'ble Supreme Court in several decisions. In the case of State of Orissa Vs. Ujjal Kumar Burdhan [(2012)4 SCC 547], it has been laid down:-

"It is true that the inherent powers vested in the High Court under Section 482 of the Code are very wide. Nevertheless, inherent powers do not confer arbitrary jurisdiction on the High Court to act according to whims or caprice. The extra-ordinary power has to be exercised sparingly with circumspection and as far as possible, for extra-ordinary cases, where allegations in the complaint or the first information report, taken on its face value and accepted in their entirety do not constitute the offence alleged. It needs little emphasis that unless a case of gross abuse of power is made out against those incharge of investigation, the High Court should be loath to interfere at the early/premature stage of investigation."

15. In the case of State of Maharashtra Vs. Arun Gulab Gawali [(2010) 9 SCC 701], it has been held by the Hon'ble Supreme Court:-

"13. The power of quashing criminal proceedings has to be exercised very sparingly and with circumspection and that too in the rarest of rare cases and the Court cannot be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of allegations made in the FIR/complaint, unless the allegations are so patently absurd and inherently improbable so that no prudent person can ever reach such a conclusion. The extraordinary and inherent powers of the Court do not confer an arbitrary jurisdiction on the Court to act according to its whims or caprice. However, the Court, under its inherent powers, can neither intervene at an uncalled for stage nor can it "soft-pedal the course of justice" at a crucial stage of investigation/proceedings. The provisions of Articles 226, 227 of the Constitution of India and Section 482 of the Code of Criminal Procedure, 1973 (hereinafter called as "CrPC") are a device to advance justice and not to frustrate it. The power of judicial review is discretionary, however, it must be exercised to prevent the miscarriage of justice and for correcting some grave errors and to ensure the esteem of administration of justice remains clean and pure. However, there are no limits of power of the Court, but the more the power, the more due care and caution is to be exercised in invoking these powers. (Vide State of W.B. v. Swapan Kumar Guha,

Pepsi Foods Ltd. V. Special Judicial Magistrate, G. Sagar Suri v. State of U.P. and Ajay Mitra v. State of M.P.)

16. In an earlier authority, Indian Oil Corporation Vs. NEPC India Ltd.

[(2006)6 SCC 736], the Hon'ble Supreme court has laid down the principles which would guide the High Court while exercising jurisdiction under Section 482 of the 1973 Code. In this judgment, it has been held:-

"The principles relating to exercise of jurisdiction under Section 482 of the Code of Criminal Procedure to quash complaints and criminal proceedings have been stated and reiterated by this Court in several decisions. To mention a few - Madhavrao Jieaji Rao Scindia v. Sambhajirao Chandrojirao Angre [1988 (1) SCC 692], State of Haryana vs. Bhajanlal [1992 Supp (1) SCC 335], Rupan Deol Bajaj vs. Kanwar Pal Singh Gill [1995 (6) SCC 194], Central Bureau of Investigation v. Duncans Agro Industries Ltd. [1996 (5) SCC 591], State of Bihar vs. Rajendra Agrawalla [1996 (8) SCC 164], Rajesh Bajaj v. State NCT of Delhi [1999(3) SCC 259], Medchl Chemicals & Pharma (P) Ltd. v. Biological E. Ltd. [2000 (3) SCC 269], Hridaya Ranjan Prasad Verma v. State of Bihar [2000 (4) SCC 168], M. Krishnan vs. Vijay Kumar [2001 (8) SCC 645], and Zandu Pharmaceutical WorDr. Saha Ltd.v. Mohd. Sharaful Haque [2005 (1) SCC 122]. The principles, relevant to our purpose are :

(i) A complaint can be quashed where the allegations made in the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out the case alleged against the accused.

For this purpose, the complaint has to be examined as a whole, but without examining the merits of the allegations. Neither a detailed inquiry nor a meticulous analysis of the material nor an assessment of the reliability or genuineness of the allegations in the complaint, is warranted while examining prayer for quashing of a complaint.

(ii) A complaint may also be quashed where it is a clear abuse of the process of the court, as when the criminal proceeding is found to have been initiated with malafides/malice for wreaking vengeance or to cause harm, or where the allegations are absurd and inherently improbable.

(iii) The power to quash shall not, however, be used to stifle or scuttle a legitimate prosecution. The power should be used sparingly and with abundant caution.'

(iv) The complaint is not required to verbatim reproduce the legal ingredients of the offence alleged. If the necessary factual foundation is laid in the complaint, merely on the ground that a few ingredients have not been stated in detail, the proceedings should not be quashed. Quashing of the complaint is warranted only where the complaint is so bereft of even the basic facts which are absolutely necessary for making out offence.

(v) A given set of facts may make out : (a) purely a civil wrong; or (b) purely a criminal offence; or (c) a civil wrong as also a criminal offence. A commercial transaction or a contractual dispute, apart from furnishing a cause of action for seeking remedy a civil law, may also involve a criminal offence. As the nature and scope of a civil proceedings are different from a criminal proceeding, the mere fact that the complaint relates to a commercial transaction or breach of contract, for which a civil remedy is available or has been availed, is not by itself a ground to quash the criminal proceedings. The test is whether the allegations in the complaint disclose a criminal offence or not."

The other judgments of the Hon'ble Supreme court cited on this point are State of Haryana Vs. Bhajan Lal [1999 Supp. 1 SCC 335], Ganesh Narayan Hegde Vs. S. Bangarappa [1995(4) SCC 41], Zandu Pharmaceutical WorDr. Saha Vs. Md. Sharaful Hague & Anr. (AIR 2005 SC 9) and Maheedhar & Anr. Vs. State of Andhra Pradesh [(2007) 13 SCC 165]

17. In the instant case, the complaint of Dr. Saha relates to non- disclosure or non-consideration of the four expert reports. This, he alleges, is deliberate suppression to screen the offenders, and causing disappearance of evidence of offence. By the term offender, he implies the doctors against whom he brought the actions before the Council, Court of the Chief Judicial Magistrate, Alipore and the NCDRC. As regards the case brought by Dr. Saha in the Court of the Chief Judicial Magistrate, Alipore, there has been final acquittal of the accused doctors in the Hon'ble Supreme Court. Thus, suppression of such reports could not constitute disappearance of evidence respecting a penal offence or screening the offender, even if the allegations of deliberate suppression are assumed to be correct. Nor can such suppression sustain the charge of screening an offender, the Hon'ble Supreme Court having acquitted the accused doctors.

18. Dr. Saha on this point had contended that the expression offence contained in the said provision cannot be given a restrictive construction to confine the term of penal offence. According to him, expression "offence" in that section refers to any form of transgression or breach of law. In this regard, he brought to my notice the meaning of offence as per the Merriam Webster's Collegiate Dictionary (eleventh edition):-

"offence- 1 a obs : an act of stumbling b archaic : a cause or occasion of sin : STUMBLING BLOCK 2 : something that outrages the moral or physical senses 3 a : the act of attacking : ASSULT b : the means or method of attacking or of attempting to score c : the offensive team or members of a team playing offensive positions d : scoring ability 4 a : the act of displeasing or affronting b : the state of being insulted or morally outraged (takes - at the slightest criticism) 5 a : a breach of a moral or social code : SIN MISDEED b : an infraction of law;"

He also referred to definition of offence in Section 2(n) of the 1973 Code, which provides:-

"offence" means any act or omission made punishable by any law for the time being in force or any act in respect of which a complaint may be made under Section 20 of the cattle-trespass Act, 1871(1 of 1871).

19. So far as the expression "offence" is concerned, for the purpose of Section 201, prima facie it appears to me that the definition "offence" as contained in Section 40 of the IPC would be applicable. There is specific reference to Section 201 in the second part of the said provision, i.e. Section 40, which stipulates:-

"40. 'Offence'- Except in the [Chapters] and sections mentioned in clauses 2 and 3 of this section, the word "offence" denotes a thing made punishable by this Code. In Chapter IV [Chapter VA] and in the following sections, namely, sections [64, 65, 66, [67], 71], 109, 110, 112, 114, 115, 116, 117, [118, 119, 120,] 187, 194, 195, 203, 211, 213, 214, 221, 222, 223, 224, 225, 327, 328, 329, 330, 331, 347, 348, 388, 389 and 445, the word "offence"

denotes a thing punishable under this Code, or under any special or local law as hereinafter defined.

And in sections 141, 176, 177, 201, 202, 212, 2016 and 441, the word "offence" has the same meaning when the thing punishable under the special or local law is punishable under such law with imprisonment for a term of six months or upwards, whether with or without fine."

20. But complaint has been made by Dr. Saha not only under the provisions of Section 201 of the IPC, but his allegations also relate to offence under Section 120B of the IPC. Section 120B of the IPC provides:-

"Punishment of criminal conspiracy.-(1) Whoever is a party to a criminal conspiracy to commit an offence punishable with death, [imprisonment for life] or rigorous imprisonment for a term of two years or upwards, shall, where no express provision is made in this Code for the punishment of such a conspiracy, be punished in the same manner as if he had abetted such offence.

(2) Whoever is a party to a criminal conspiracy other than a criminal conspiracy to commit an offence punishable as aforesaid shall be punished with imprisonment of either description for a term not exceeding six months, or with fine or with both."

21. Criminal conspiracy is defined in Section 120A of the IPC as:-

"120A. Definition of criminal conspiracy.- When two or more persons agree to do, or cause to be done,-

(1) an illegal act, or (2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof. Explanation- It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely

incidental to the object."

Section 43 of the IPC defines the word "Illegal" as:-

"Illegal", "Legally bound to do"-"The word "illegal" is applicable to everything which is an offence or which is prohibited by law, or which furnishes ground for a civil action; and a person is said to be "legally bound to do"

whatever it is illegal in him to omit."

22. On a combined reading of these three provisions of the IPC it appears to me that in the definition of criminal conspiracy, a wider description of an illegal act has been contemplated, which might include an agreement to commit a civil wrong as well. Dr. Saha has referred to the decision of the MCI in his appeal, which has directed certain disciplinary action against the two doctors in the nature of suspension. Though operation of the decision of the MCI has been stayed of this Court, the impact of the decision has not been effaced out altogether as yet. It is a question of interpretation as to whether the decision of MCI, acting as an Appellate body, imposing disciplinary measure against a doctor could constitute a civil wrong to fit in the definition of "illegal" under the IPC. The jurisdiction of the MCI to pass such order is also under scrutiny of this Court in the two writ petitions brought by the two doctors. But to embark on that exercise at this stage would involve a meticulous analysis of the materials, which I am not to undertake while exercising jurisdiction under Section 482 of the 1973 Code. On behalf of the petitioners, Mr. Bhattacharya had submitted that the petitioners had acted as a body corporate and could not be subjected to a criminal action. On the other hand, Dr. Saha had relied on a decision of the Hon'ble Supreme Court in the case of Mehar Singh Saini, Chairman, Haryana Public Service Commission [(2010)13 SCC 586], to contend that members of a high ranking public body can be held to be involved in a conspiracy to select an undeserved candidate. Ratio of this decision, however, does not directly apply in the facts of the instant proceeding.

23. The decisions of the Hon'ble Supreme Court in the case of Arun Gulab Gawali (supra) and Gian Singh Vs. State of Punjab [(2012)10 SCC 303] were also cited by Dr. Saha to contend that cases involving heinous crimes ought not be ordinarily quashed by the High Court. But it is not the opinion of the Hon'ble Supreme Court that even if a case for quashing is made out, the High Court should not grant relief on the ground that the applicants before the Court are "influential people". Dr. Saha also argued that further investigation in respect of his complaint may lead to disclosure of some new offence, relying on two decisions, Hasanbhai Valibhai Oureshi Vs. State of Gujarat [(2004)5 SCC 347] and Sasi Thomas Vs. State [(2007)2 SCC (Cri) 72] delivered dealing with the provisions of Section 173(8) of the 1973 Code. But I do not think this argument merits any consideration, as at this stage I am to examine only the petition of complaint and the initial deposition of the complainant.

24. I do not think a foolproof case has been made out by the petitioners which would warrant quashing of the proceeding at the threshold in these circumstances. Doubt may be raised on the legal strength of the complaint, but the case of the petitioners does not satisfy the five-point criteria

laid down by the Hon'ble Supreme Court in the case of Indian Oil Corporation Vs. NEPC India Ltd. (supra) to reject the complaint at this stage. I do not think the extraordinary jurisdiction of the High Court under Section 482 of the 1973 Code ought to be exercised in this proceeding. The petitioners shall be at liberty to seek discharge before the learned Magistrate, under Section 245(2) of the 1973 Code, if applicable, or apply for dismissal, or pray for any other relief as may be permissible under the law. The present petition shall, however, stand dismissed. The interim order passed in this matter shall stand dissolved.

25. There shall be not order as to costs.

26. Urgent photostat certified copy of this judgment, if applied for, be handed over to the parties on compliance of necessary formalities.

(ANIRUDDHA BOSE, J.)